

Title: RiceTec Basmati Patent — Biopiracy Precedent Beyond Medicinal TK (GI/Prior Art Angle)

Jurisdiction: International

Category: Case Law

Source Citation: Re-examination of US Patent No. 5,663,484 "Basmati Rice Lines and Grains," United States Patent and Trademark Office; claims withdrawn/rejected 2000–2001

Plain English Summary:

Texas-based RiceTec obtained a US patent in 1997 covering "novel" basmati rice lines bred by crossing 22 Indian and Pakistani farmer varieties with other rice. Following a Supreme Court of India public-interest petition and a government re-examination request, RiceTec withdrew several claims, and the USPTO later rejected the bulk of the remaining ones as anticipated by prior art (existing South Asian basmati varieties). While this is a plant/agricultural patent rather than a medicinal one, it's directly relevant to your database because it establishes the same core legal principle — **that Indian farmer/community-held genetic resources can defeat a foreign "novelty" claim** — and it's the case most often cited alongside Neem and Turmeric as the "third pillar" of India's biopiracy litigation history.

The Exact Legal Text:

[Patent office proceeding, not a statute — summarized holding.] US Patent No. 5,663,484 was granted to RiceTec Inc. on 2 September 1997, with 20 claims covering basmati rice lines, plants, and grains. Following a public interest petition filed in the Supreme Court of India in March 1998, the Government of India, through the Agricultural and Processed Food Products Export Development Authority (APEDA), filed a request for re-examination with the USPTO in April 2000, challenging claims 15–17 on grounds of lack of novelty. RiceTec voluntarily withdrew claims 4, 15, 16, and 17 in September 2000. In April 2001, a USPTO re-examiner rejected 13 of the 16 remaining claims, finding the claimed rice lines, plants, and grains to be prior art or substantially identical to basmati varieties already grown in India and Pakistan. The patent title was subsequently amended, and RiceTec ceased marketing products under the "Basmati" name for the challenged lines.

Keywords/Triggers:

RiceTec basmati patent, US 5663484, GI biopiracy case, APEDA patent challenge, agricultural prior art India, basmati novelty rejection, farmer variety patent defeat